

November 4, 2019

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No. 19–280. *LONG v. ALAMEDA UNIFIED SCHOOL DISTRICT*. C. A. 9th Cir. Certiorari denied. Reported below: 764 Fed. Appx. 585.

No. 19–290. *RENOBATO v. BUREAU OF THE FISCAL SERVICE*. C. A. 5th Cir. Certiorari denied.

No. 19–297. *H&M HENNES & MAURITZ, LP v. MALIBU TEXTILES, INC.* C. A. 9th Cir. Certiorari denied. Reported below: 922 F. 3d 946.

No. 19–298. *JUAREZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–306. *CUSHMAN & WAKEFIELD, INC. v. RINSKY*. C. A. 1st Cir. Certiorari denied. Reported below: 918 F. 3d 8.

No. 19–318. *BOTTINI ET AL. v. CITY OF SAN DIEGO, CALIFORNIA, ET AL.* Ct. App. Cal., 4th App. Dist., Div. 1. Certiorari denied. Reported below: 27 Cal. App. 5th 281, 238 Cal. Rptr. 3d 260.

No. 19–324. *TECHNOLOGY PROPERTIES LTD. LLC ET AL. v. HUAWEI TECHNOLOGIES Co., LTD., ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 750 Fed. Appx. 1003.

No. 19–346. *MADURA ET UX. v. BAC HOME LOANS SERVICING, L. P., ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 1053.

No. 19–381. *RAINBOW RIDGE RESORT, LLC, ET AL. v. BRANCH BANKING & TRUST Co.* Ct. App. Tenn. Certiorari denied. Reported below: 582 S. W. 3d 221.

No. 19–393. *STEIN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 828.

No. 19–394. *MEJIA-DUARTE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 730.

No. 19–398. *LMP SERVICES, INC. v. CITY OF CHICAGO, ILLINOIS*. Sup. Ct. Ill. Certiorari denied. Reported below: 2019 IL 123123, 160 N. E. 3d 822.

No. 19–412. *CIANCHETTE ET AL. v. CIANCHETTE ET AL.* Sup. Jud. Ct. Me. Certiorari denied. Reported below: 2019 ME 87, 209 A. 3d 745.

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No. 19–427. BROCKETT ET AL. *v.* ORSO, AS RECEIVER FOR REX VENTURE GROUP, LLC, DBA ZEEKREWARDS.COM. C. A. 4th Cir. Certiorari denied. Reported below: 922 F. 3d 502.

No. 19–450. BRIGHAM & WOMEN’S HOSPITAL, INC., ET AL. *v.* PERRIGO CO. ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 761 Fed. Appx. 995.

No. 19–5010. NELSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 917.

No. 19–5098. WHITE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 915 F. 3d 1195.

No. 19–5114. RODRIGUEZ *v.* UNITED STATES; and

No. 19–5172. HILARIO-BELLO *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 761 Fed. Appx. 53.

No. 19–5312. BURKE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 746 Fed. Appx. 951.

No. 19–5343. DUPREE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 767 Fed. Appx. 181.

No. 19–5392. MYRIE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 19–5430. JACKSON *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 418.

No. 19–5436. ARAIZA-JACOBO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 917 F. 3d 360.

No. 19–5662. STEPHENS *v.* GOMEZ ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 754 Fed. Appx. 597.

No. 19–5665. DOYLE *v.* BAUGHMAN, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 19–5707. NARCISO *v.* NARCISO. Ct. Civ. App. Ala. Certiorari denied. Reported below: 292 So. 3d 372.

No. 19–5708. PHILLIPS *v.* DEKALB COUNTY ASSISTANT PUBLIC DEFENDERS ET AL. Ct. App. Ga. Certiorari denied.

No. 19–5712. VASQUEZ *v.* CALIFORNIA. Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied.

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No. 19–5713. *OWENS v. SADDLERS ET AL.* (three judgments). Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 295 So. 3d 1166 (first judgment); 292 So. 3d 439 (second judgment); 279 So. 3d 95 (third judgment).

No. 19–5716. *DUPUY v. UNKNOWN*. C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 315.

No. 19–5720. *SCOTT v. MOON ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 138.

No. 19–5723. *THOMPSON v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. C. A. 11th Cir. Certiorari denied.

No. 19–5725. *ROCHESTER v. FORTUNE SOCIETY*. C. A. 2d Cir. Certiorari denied.

No. 19–5726. *ROBINSON v. RAINTREE TOWER APARTMENTS ET AL.* C. A. 5th Cir. Certiorari denied.

No. 19–5733. *BOYD v. UNITED STATES* (Reported below: 773 Fed. App. 702); *BOYD v. SOUTH CAROLINA ET AL.* (773 Fed. App. 678); and *BOYD v. DIANGIKES* (773 Fed. Appx. 689). C. A. 4th Cir. Certiorari denied.

No. 19–5734. *WILLIAMS v. MILLARD, FORMER JUDGE, DISTRICT COURT OF TEXAS, HARRIS COUNTY*. C. A. 5th Cir. Certiorari denied.

No. 19–5735. *WILLIAMS v. REAGIN*. C. A. 5th Cir. Certiorari denied.

No. 19–5736. *AHADZADAH v. SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY*. Ct. App. Cal., 1st App. Dist., Div. 3. Certiorari denied.

No. 19–5740. *MILLER v. BRITTAIN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FRACKVILLE, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–5745. *RYAN v. CONNELLY ET AL.* Sup. Ct. R. I. Certiorari denied. Reported below: 206 A. 3d 127.

No. 19–5748. *MITCHELL v. MACY’S, INC., ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–5752. *ANDERSON v. TEXAS*. Ct. App. Tex., 7th Dist. Certiorari denied.

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No. 19–5760. *TOURE v. NEW YORK*. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 169 App. Div. 3d 439, 91 N. Y. S. 3d 883.

No. 19–5762. *JACKSON v. FLORIDA*. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 272 So. 3d 1270.

No. 19–5764. *DICKENS v. ILLINOIS ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 390.

No. 19–5765. *BROWN v. CALIFORNIA DEPARTMENT OF MOTOR VEHICLES ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–5769. *WHITT v. BUCKNER, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 19–5773. *KENNEY v. BRAZELTON, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–5775. *SOLDAN v. MICHIGAN*. Ct. App. Mich. Certiorari denied.

No. 19–5776. *SCHWARZ v. MEINBERG ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 732.

No. 19–5779. *RODRIGUEZ-LOPEZ v. FLORIDA*. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 268 So. 3d 827.

No. 19–5783. *TOWNSEND v. VASQUEZ*. Ct. App. Tex., 1st Dist. Certiorari denied. Reported below: 569 S. W. 3d 796.

No. 19–5786. *NOWLAND v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–5787. *MILLAN-RODRIGUEZ v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 434.

No. 19–5792. *TURNER v. TENNESSEE*. Sup. Ct. Tenn. Certiorari denied.

No. 19–5797. *MARTIN v. TEXAS*. Ct. App. Tex., 11th Dist. Certiorari denied. Reported below: 570 S. W. 3d 426.

No. 19–5799. *CODDINGTON v. DAVIDS, WARDEN*. C. A. 6th Cir. Certiorari denied.

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No. 19–5800. *DENSON v. ILLINOIS*. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 19–5803. *JOHNSON v. STANLEY, SUPERINTENDENT, WARREN CORRECTIONAL INSTITUTION*. C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 55.

No. 19–5809. *DUBRY v. KANSAS*. Sup. Ct. Kan. Certiorari denied. Reported below: 309 Kan. 1229, 444 P. 3d 328.

No. 19–5815. *PARKER v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 19–5821. *ROBINSON v. ARIZONA ET AL.* Sup. Ct. Ariz. Certiorari denied.

No. 19–5823. *ALSTON v. EASTMAN*. C. A. 11th Cir. Certiorari denied.

No. 19–5824. *KENNEDY v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–5826. *PEREZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–5827. *PELUSO v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–5828. *BALL v. CITY OF MARION, ILLINOIS*. App. Ct. Ill., 5th Dist. Certiorari denied.

No. 19–5830. *DANIELSON v. NEW YORK*. App. Div., Sup. Ct. N. Y., 3d Jud. Dept. Certiorari denied. Reported below: 170 App. Div. 3d 1430, 96 N. Y. S. 3d 754.

No. 19–5832. *DURAIN v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 268 So. 3d 706.

No. 19–5834. *MCWATERS v. RYAN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–5836. *JOHNSON v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

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No. 19–5841. *SHAKOURI v. DAVIS*, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 923 F. 3d 407.

No. 19–5846. *TOWNLEY v. TEXAS*. Ct. App. Tex., 2d Dist. Certiorari denied.

No. 19–5850. *YAMANO v. HAWAII STATE JUDICIARY ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 198.

No. 19–5851. *BROWN v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF OHIO*. C. A. 6th Cir. Certiorari denied.

No. 19–5855. *GREER v. MICHIGAN*. Cir. Ct. Wayne County, Mich. Certiorari denied.

No. 19–5858. *CRITTENDEN v. BUTTS*, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 19–5859. *WESBY v. FLORIDA*. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 262 So. 3d 818.

No. 19–5860. *WASHINGTON v. DAVIS*, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 19–5868. *BURGESS v. BOWERS ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 238.

No. 19–5882. *CHACON v. NEVADA* (Reported below: 135 Nev. 625); *CHAVEZ v. NEVADA* (135 Nev. 626); *COOPER v. GENTRY*, WARDEN (135 Nev. 631); and *SALVA MERCADO v. NEVADA* (135 Nev. 686). Ct. App. Nev. Certiorari denied.

No. 19–5898. *HOWELL v. SOUTHERLAND ET AL.* Ct. App. Tenn. Certiorari denied.

No. 19–5900. *ISON v. BROWN*, SUPERINTENDENT, WABASH VALLEY CORRECTIONAL FACILITY. C. A. 7th Cir. Certiorari denied.

No. 19–5904. *DENNIS v. VANNOY*, WARDEN. C. A. 5th Cir. Certiorari denied.

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No. 19–5910. *CARPENTER v. GEORGIA*. Sup. Ct. Ga. Certiorari denied. Reported below: 305 Ga. 725, 827 S. E. 2d 250.

No. 19–5920. *POGUE v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–5930. *BLAKE v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–5933. *ALEJANDRO MENDEZ v. CALIFORNIA*. Sup. Ct. Cal. Certiorari denied. Reported below: 7 Cal. 5th 680, 443 P. 3d 896.

No. 19–5954. *IRIVE v. GENTRY, WARDEN, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 466.

No. 19–5966. *HEARD v. TILDEN ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 985.

No. 19–5981. *TRUESDALE v. FLORIDA*. C. A. 11th Cir. Certiorari denied.

No. 19–5986. *WHITAKER v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 278 So. 3d 604.

No. 19–5992. *CHATMAN v. DEMOURA*. C. A. 1st Cir. Certiorari denied.

No. 19–5993. *JAMES v. POLLARD, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 536.

No. 19–6029. *JEFFS v. OVERMYER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FOREST, ET AL.* Sup. Ct. Pa. Certiorari denied.

No. 19–6041. *THOMPSON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 360.

No. 19–6045. *SUMMERHAYS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–6048. *PILLIER v. MASSACHUSETTS*. App. Ct. Mass. Certiorari denied. Reported below: 95 Mass. App. 1112, 125 N. E. 3d 799.

No. 19–6049. *TYLER v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

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No. 19–6050. *VIZCARRONDO-CASANOVA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6053. *FERNANDEZ HANO v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 922 F. 3d 1272.

No. 19–6057. *PETERS v. ARNOLD, WARDEN*. C. A. 9th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 389.

No. 19–6058. *PHILIPPE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6059. *ARNOLD v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 183.

No. 19–6060. *MATHEWS v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 928 F. 3d 968.

No. 19–6065. *FUSCO v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 19–6067. *SUAREZ v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 542.

No. 19–6071. *MORGAN v. MICHIGAN*. Ct. App. Mich. Certiorari denied.

No. 19–6073. *JONES v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS*. C. A. 11th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 626.

No. 19–6079. *VEGA-BOTELLO v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 201.

No. 19–6081. *GILLMAN v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–6082. *MATHENY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 198.

No. 19–6084. *MENDOZA MONTOYA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 525.

No. 19–6088. *MADERO-DIAZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 752 Fed. Appx. 537.

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No. 19–6137. *WIDMYER v. BALLARD, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 324.

No. 19–6152. *OWENS v. MICKENS, WARDEN, ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–6154. *JOHNSON v. MISSOURI*. Ct. App. Mo., Western Dist. Certiorari denied. Reported below: 576 S. W. 3d 205.

No. 19–6170. *RITTERBUSH v. BENZON*. C. A. 10th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 483.

No. 19–211. *TIME WARNER CABLE, INC., ET AL. v. SPRINT COMMUNICATIONS Co., L. P.* C. A. Fed. Cir. Certiorari denied. THE CHIEF JUSTICE took no part in the consideration or decision of this petition. Reported below: 760 Fed. Appx. 977.

No. 19–407. *MILES v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 923 F. 3d 798.

No. 19–6477 (19A482). *RHINES v. YOUNG, WARDEN*. C. A. 8th Cir. Application for stay of execution of sentence of death, presented to JUSTICE GORSUCH, and by him referred to the Court, denied. Certiorari denied. Reported below: 941 F. 3d 894.

Statement of JUSTICE SOTOMAYOR respecting the denial of certiorari.

In 1993, a South Dakota jury sentenced petitioner Charles Rhines to death for murdering his co-worker. In order to assist them in preparing a state clemency application, Rhines’ federal habeas attorneys retained medical experts to evaluate Rhines. State officials, as well as a state court, refused to grant the experts access to Rhines in prison. The Federal District Court below also denied Rhines’ request for access. It reasoned, among other things, that the federal public defender statute, 18 U. S. C. § 3599, did not give it authority to “supervise or control a state’s clemency process” and that South Dakota did not violate Rhines’ due process rights by denying his experts access to the prison. 2018 WL 2390130, *9 (D SD, May 25, 2018).

The Court of Appeals for the Eighth Circuit did not address the bulk of Rhines’ contentions. It instead dismissed the appeal, concluding that the expert-access issue was “either moot or . . . not . . . fully exhausted.” 941 F. 3d 894, 896 (2019) (*per curiam*). In essence, because Rhines’ execution was imminent and his clemency application pending before the Governor of South Dakota,

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the court found that Rhines should have previously asked the Governor to allow his experts access to the prison—or that he could still do so. *Id.*, at 895–896. The Eighth Circuit reached that conclusion even though the anticipated expert report was, in Rhines’ view, an important predicate for the clemency application itself.

It is unclear from this record whether an expert evaluation is necessary to Rhines’ clemency application. Although Rhines’ experts believed there were additional grounds for investigation—including traumatic events that Rhines suffered earlier in his life—Rhines, as the State notes, has already been evaluated by several psychiatric experts in a different context. For that reason, I do not dissent from the denial of certiorari. I write separately, however, to note that this Court’s denial of certiorari does not represent an endorsement of the lower courts’ opinions. I also write separately to emphasize that clemency is not “a matter of mercy alone,” but rather is the “‘fail safe’ in our criminal justice system.” *Harbison v. Bell*, 556 U. S. 180, 192 (2009) (quoting *Herrera v. Collins*, 506 U. S. 390, 415 (1993)). By closing the prison doors in this context, a State risks rendering this fundamental process an empty ritual.

Rehearing Denied

No. 18–8890. *JONES v. SMITH, WARDEN, ET AL.*, 588 U. S. 911;
No. 18–8901. *JONES v. GOODWIN, JUDGE, CRIMINAL COURT FOR SULLIVAN COUNTY, TENNESSEE*, 588 U. S. 911;
No. 18–8972. *JOINER v. SUTTON, WARDEN*, 587 U. S. 1056;
No. 18–9024. *LITTLES v. FLORIDA*, 587 U. S. 1045;
No. 18–9389. *SHIELDS v. KLEIN*, 589 U. S. 1008; and
No. 19–5405. *WILLIAMS v. UNITED STATES ET AL.*, 589 U. S. 1010. Petitions for rehearing denied.

NOVEMBER 5, 2019

Dismissal Under Rule 46

No. 19–6111. *KHAN v. UNITED STATES*. C. A. 11th Cir. Certiorari dismissed under this Court’s Rule 46.1. Reported below: 928 F. 3d 1264.

NOVEMBER 8, 2019

Certiorari Granted

No. 19–46. *UNITED STATES PATENT AND TRADEMARK OFFICE ET AL. v. BOOKING.COM B. V.* C. A. 4th Cir. Certiorari granted. Reported below: 915 F. 3d 171.

NOVEMBER 12, 2019

Certiorari Granted—Vacated and Remanded

No. 19–5501. *WOODBERRY v. UNITED STATES*. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Rehaif v. United States*, 588 U.S. 225 (2019). Reported below: 756 Fed. Appx. 319.

Certiorari Dismissed

No. 19–5863. *BITON v. UNITED AIRLINES ET AL.* C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 771 Fed. Appx. 147.

No. 19–5881. *ARMSTRONG v. VIRGINIA ET AL.*;

No. 19–5886. *ARMSTRONG v. NORTH CAROLINA ET AL.*; and

No. 19–5887. *ARMSTRONG v. DOE*. C. A. 4th Cir. Motions of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–5984. *JONES v. BONNYMAN ET AL.* C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–6138. *WHITE v. UNITED STATES*. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–6182. *CATERBONE v. UNITED STATES*. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 18–916. *THRYV, INC., FKA DEX MEDIA, INC. v. CLICK-TO-CALL TECHNOLOGIES, LP, ET AL.* [Certiorari granted *sub nom. Dex Media, Inc. v. Click-To-Call Technologies, LP*, 588 U.S. 905.] C. A. Fed. Cir. Motion of the Solicitor General for divided argument granted.

No. 18–1023. *MAINE COMMUNITY HEALTH OPTIONS v. UNITED STATES*;

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No. 18–1028. MODA HEALTH PLAN, INC. *v.* UNITED STATES; and BLUE CROSS BLUE SHIELD OF NORTH CAROLINA *v.* UNITED STATES; and

No. 18–1038. LAND OF LINCOLN MUTUAL HEALTH INSURANCE CO. *v.* UNITED STATES. C. A. Fed. Cir. [Certiorari granted, 588 U. S. 905.] Motion of petitioners for enlargement of time for oral argument and for divided argument denied.

No. 18–1116. INTEL CORPORATION INVESTMENT POLICY COMMITTEE ET AL. *v.* SULYMA. C. A. 9th Cir. [Certiorari granted, 587 U. S. 1050.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–6943. BANISTER *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. [Certiorari granted, 588 U. S. 905.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–9730. LEPRE *v.* PENNSYLVANIA ET AL. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 905] denied.

No. 18–9750. CURRY *v.* LOPEZ, ASSOCIATE JUDGE, CIRCUIT COURT OF ILLINOIS, COOK COUNTY, ET AL. C. A. 7th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U. S. 913] denied.

No. 19–5843. RUBANG *v.* GALLAGHER BASSETT SERVICES, INC., ET AL. C. A. 9th Cir.; and

No. 19–5958. HELM *v.* HAUSER. Ct. App. Tex., 4th Dist. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until December 3, 2019, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 19–6317. IN RE SHIPMAN. Petition for writ of habeas corpus denied.

No. 19–449. IN RE EZOR;

No. 19–5873. IN RE KAUL;

No. 19–5901. IN RE HAMILTON;

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No. 19–6121. IN RE STASZAK; and
No. 19–6227. IN RE WILLIAMS. Petitions for writs of mandamus denied.

No. 19–6258. IN RE CASTEEL. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus dismissed. See this Court’s Rule 39.8.

No. 19–6169. IN RE BRAUNER. Petition for writ of mandamus and/or prohibition denied.

Certiorari Denied

No. 18–1139. BNSF RAILWAY CO. *v.* EQUAL EMPLOYMENT OPPORTUNITY COMMISSION. C. A. 9th Cir. Certiorari denied. Reported below: 902 F. 3d 916.

No. 18–1400. E. V. *v.* ROBINSON, LIEUTENANT COLONEL, U. S. MARINE CORPS, MILITARY JUDGE. C. A. 9th Cir. Certiorari denied. Reported below: 906 F. 3d 1082.

No. 18–9424. EADY *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 18–9532. BRAY *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 764 Fed. Appx. 774.

No. 18–9692. WHITE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 405.

No. 18–9794. VALLEJO *v.* TEXAS. Ct. App. Tex., 3d Dist. Certiorari denied.

No. 19–23. ROCKWOOD CASUALTY INSURANCE CO. *v.* DIRECTOR, OFFICE OF WORKERS’ COMPENSATION PROGRAMS, DEPARTMENT OF LABOR, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 917 F. 3d 1198.

No. 19–99. NORTHERN KENTUCKY AREA DEVELOPMENT DISTRICT *v.* SNYDER. Sup. Ct. Ky. Certiorari denied. Reported below: 570 S. W. 3d 531.

No. 19–131. KNIGHTON *v.* CEDARVILLE RANCHERIA OF NORTHERN PAIUTE INDIANS ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 922 F. 3d 892.

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No. 19–154. *ZAFER CONSTRUCTION CO. v. ARMY CORPS OF ENGINEERS*. C. A. Fed. Cir. Certiorari denied. Reported below: 753 Fed. Appx. 909.

No. 19–164. *SAMARRIPA ET AL. v. KIZZIAH, WARDEN, ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 917 F. 3d 515.

No. 19–168. *REMINGTON ARMS CO., LLC, ET AL. v. SOTO, ADMINISTRATRIX OF THE ESTATE OF SOTO, ET AL.* Sup. Ct. Conn. Certiorari denied. Reported below: 331 Conn. 53, 202 A. 3d 262.

No. 19–178. *LAUL v. LOS ALAMOS NATIONAL LABORATORIES*. C. A. 10th Cir. Certiorari denied. Reported below: 765 Fed. Appx. 434.

No. 19–191. *PAGE v. HICKS ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 514.

No. 19–259. *MARON PICTURES LTD. v. EIGEN ET AL.* Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied.

No. 19–299. *G. D. P. v. N. G. P.* Sup. Jud. Ct. Me. Certiorari denied.

No. 19–300. *MAZE, CIRCUIT JUDGE v. KENTUCKY JUDICIAL CONDUCT COMMISSION*. Sup. Ct. Ky. Certiorari denied. Reported below: 575 S. W. 3d 204.

No. 19–302. *BORNEMANN v. KEKONA, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF KEKONA, DECEASED*. Int. Ct. App. Haw. Certiorari denied.

No. 19–303. *RODRIGUEZ BAUTISTA v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–314. *CHIU v. JUI-CHIEN LIN*. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 19–317. *GOKOOL v. OKLAHOMA CITY UNIVERSITY*. C. A. 10th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 894.

No. 19–319. *CRUICKSHANK-WALLACE ET VIR v. CNA FINANCIAL CORP. ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 769 Fed. Appx. 77.

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No. 19–355. *KOHLBERG VENTURES, LLC v. WOJCIECHOWSKI*. C. A. 9th Cir. Certiorari denied. Reported below: 923 F. 3d 685.

No. 19–365. *BARTH v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–378. *LAM ET AL. v. CITY AND COUNTY OF SAN FRANCISCO, CALIFORNIA, ET AL.*;

No. 19–379. *LAM ET AL. v. CITY AND COUNTY OF SAN FRANCISCO, CALIFORNIA, ET AL.*; and

No. 19–380. *LAM ET AL. v. CITY AND COUNTY OF SAN FRANCISCO, CALIFORNIA, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 763 Fed. Appx. 619.

No. 19–429. *HUNTER v. UNITED STATES ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 329.

No. 19–437. *PATERNO v. CITY OF NEW YORK ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 781 Fed. Appx. 15.

No. 19–456. *BUNCICH v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 926 F. 3d 361.

No. 19–479. *KAM v. PEYTON*. C. A. 5th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 784.

No. 19–480. *HANKINS ET AL. v. SEIFMAN ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 304.

No. 19–5125. *GALLEGOS-LOPEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 679.

No. 19–5206. *SAWICKY v. AMC NETWORKS INC.* C. A. 9th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 501.

No. 19–5460. *ORTEGA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 730.

No. 19–5489. *AQUART v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 912 F. 3d 1.

No. 19–5491. *WOODS v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 19–5493. *TAYLOR v. OREGON*. Sup. Ct. Ore. Certiorari denied. Reported below: 364 Ore. 364, 434 P. 3d 331.

No. 19–5737. *BURNAM v. PENNSYLVANIA*. Super. Ct. Pa. Certiorari denied. Reported below: 195 A. 3d 1022.

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No. 19–5839. *MAYS v. TEXAS*. Ct. Crim. App. Tex. Certiorari denied.

No. 19–5845. *THOMAS v. SLUSHER ET AL.* C. A. 6th Cir. Certiorari denied.

No. 19–5849. *ELYAS v. JOHNSTON ET AL.* Ct. App. Mich. Certiorari denied.

No. 19–5862. *ALBERTO RAMIREZ v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 756 Fed. Appx. 463.

No. 19–5864. *JONES v. ILLINOIS*. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2018 IL App (1st) 160045–U.

No. 19–5867. *KRASNY v. KRASNY*. Super. Ct. N. J., Chan. Div. Certiorari denied.

No. 19–5885. *COLLINS v. GONZALEZ ET AL.* Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied.

No. 19–5892. *TITUS ET UX. v. ALAEDDIN ET AL.* App. Ct. Ill., 3d Dist. Certiorari denied. Reported below: 2018 IL App (3d) 170400, 118 N. E. 3d 707.

No. 19–5893. *PFEIFFER v. MASSACHUSETTS*. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 482 Mass. 110, 121 N. E. 3d 1130.

No. 19–5894. *BENTLEY v. HORTON, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–5896. *DINNERSTEIN v. BURLINGTON COUNTY COLLEGE*. C. A. 3d Cir. Certiorari denied. Reported below: 764 Fed. Appx. 214.

No. 19–5899. *HOUSE ET UX. v. EGLAND ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–5902. *MISTER v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION*. Sup. Ct. Ark. Certiorari denied. Reported below: 2019 Ark. 187, 575 S. W. 3d 410.

No. 19–5903. *OGDEN v. DIGITAL INTELLIGENCE SYSTEMS*. Ct. App. Ariz. Certiorari denied.

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No. 19–5906. *TAEBEL v. DUCEY, GOVERNOR OF ARIZONA, ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–5915. *VARNAUSKAS v. ILLINOIS.* App. Ct. Ill., 3d Dist. Certiorari denied. Reported below: 2018 IL App (3d) 150654, 117 N. E. 3d 424.

No. 19–5916. *MATIAS TORRES v. DIAZ, WARDEN.* C. A. 9th Cir. Certiorari denied.

No. 19–5939. *MONTERO v. TULSA AIRPORT IMPROVEMENTS TRUST.* C. A. 10th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 439.

No. 19–5960. *BANE v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 119.

No. 19–5977. *DALTON v. CALIFORNIA.* Sup. Ct. Cal. Certiorari denied. Reported below: 7 Cal. 5th 166, 441 P. 3d 283.

No. 19–6005. *MALONE v. UNITED STATES.* C. A. 7th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 281.

No. 19–6017. *CORDERO v. GUZMAN ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 784.

No. 19–6034. *CASTILLO v. UNITED STATES.* C. A. 3d Cir. Certiorari denied. Reported below: 772 Fed. Appx. 11.

No. 19–6036. *DOMINGUEZ-CALDERON v. UNITED STATES.* C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 178.

No. 19–6038. *BATEMAN v. MISSISSIPPI.* Ct. App. Miss. Certiorari denied. Reported below: 267 So. 3d 793.

No. 19–6089. *SIGNORE v. UNITED STATES.* C. A. 11th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 685.

No. 19–6104. *PEARSON v. UNITED STATES.* C. A. 8th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 687.

No. 19–6107. *LEDBETTER v. UNITED STATES;*
No. 19–6155. *USSURY v. UNITED STATES;* and
No. 19–6176. *HARRIS v. UNITED STATES.* C. A. 6th Cir. Certiorari denied. Reported below: 929 F. 3d 338.

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No. 19–6115. *AGUIRRE-GANCEDA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 403.

No. 19–6116. *EVANS v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 924 F. 3d 21.

No. 19–6119. *SAINMELUS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 893.

No. 19–6123. *GONZALES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6124. *HILL v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 195.

No. 19–6127. *VILLALONA v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6128. *MCCARTHREN v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 707 Fed. Appx. 951.

No. 19–6131. *ESTELL v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 924 F. 3d 1291.

No. 19–6132. *CHAVEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6135. *TOWNSEND v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6141. *JOSE v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 464.

No. 19–6142. *LEONE v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6143. *SCOTT v. BEASLEY, WARDEN*. C. A. 8th Cir. Certiorari denied.

No. 19–6144. *SMITH v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 921 F. 3d 708.

No. 19–6146. *ROSARIO-RIVERA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6149. *WILLIAMS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 764 Fed. Appx. 568.

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No. 19–6150. *CUTLER v. ILLINOIS*. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2018 IL App (4th) 150846–U.

No. 19–6159. *WOMACK v. WINDSOR ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 415.

No. 19–6162. *TERRY v. SWIFT TRANSPORTATION*. C. A. 4th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 245.

No. 19–6164. *MCCAIN v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 510.

No. 19–6177. *FLORES v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 929 F. 3d 443.

No. 19–6178. *GONZALEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 228.

No. 19–6179. *FELIX-HERAS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 762 Fed. Appx. 404.

No. 19–6185. *SMILEY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 750 Fed. Appx. 226.

No. 19–6187. *KAISER v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 441.

No. 19–6188. *HERRIN v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–6196. *MONSEGUE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6197. *REYNOLDS v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–6201. *STERLING v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6202. *RODRIGUEZ-SANTANA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6205. *NAVARRETE-FELIX v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 392.

No. 19–6208. *LUSSIER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–6209. *HUDSON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

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No. 19–6217. *HALL v. DEPARTMENT OF VETERANS AFFAIRS*. C. A. 4th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 572.

No. 19–6221. *BROWN v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–6224. *PHILONG HUYNH v. BRENNAN, POSTMASTER GENERAL*. C. A. D. C. Cir. Certiorari denied. Reported below: 773 Fed. Appx. 4.

No. 19–6225. *HALL v. ANDREWS*. C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 130.

No. 19–6232. *NEIHEISEL v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 935.

No. 19–6234. *MELTON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 761 Fed. Appx. 171.

No. 19–6238. *TAYLOR v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 346.

No. 19–6240. *NORRIS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–6241. *PETRUK v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 929 F. 3d 952.

No. 19–6242. *PINEDA PENALOZA v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 784 Fed. Appx. 341.

No. 19–6253. *STREGE v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6255. *REDD v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 112.

No. 19–6256. *SIMON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied.

No. 19–6266. *JONES v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 781 Fed. Appx. 573.

No. 19–315. *GLENN v. MOSS ET AL.* C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 760 Fed. Appx. 589.